on behalf of Kurds who live in Turkey"; (3) "teach PKK members how to petition various representative bodies such as the United Nations for relief"; and (4) "engage in political advocacy on behalf of Tamils who live in Sri Lanka." *Humanitarian Law Project* v. *Mukasey*, 552 F. 3d 916, 921, n. 1 (CA9 2009); *ante*, at 14–15. All these activities are of a kind that the First Amendment ordinarily protects.

In my view, the Government has not made the strong showing necessary to justify under the First Amendment the criminal prosecution of those who engage in these activities. All the activities involve the communication and advocacy of political ideas and lawful means of achieving political ends. Even the subjects the plaintiffs wish to teach—using international law to resolve disputes peacefully or petitioning the United Nations, for instance—concern political speech. We cannot avoid the constitutional significance of these facts on the basis that some of this speech takes place outside the United States and is directed at foreign governments, for the activities also involve advocacy in *this* country directed to *our* government and *its* policies. The plaintiffs, for example, wish to write and distribute publications and to speak before the United States Congress. App. 58–59.

That this speech and association for political purposes is the *kind* of activity to which the First Amendment ordinarily offers its strongest protection is elementary. See *New York Times Co.* v. *Sullivan*, 376 U. S. 254, 269 (1964) (The First Amendment "'was fashioned to assure unfettered interchange of ideas for the bringing about of political and social changes desired by the people'" (quoting *Roth* v. *United States*, 354 U. S. 476, 484 (1957)); *Lovell* v. *City of Griffin*, 303 U. S. 444, 452 (1938) (rejecting licensing scheme for distribution of "pamphlets and leaflets," "historic weapons in the defense of liberty"); *R. A. V.* v. *St. Paul*, 505 U. S. 377, 422 (1992) (STEVENS, J., concurring in judgment) ("Our First Amendment decisions have created a rough hierarchy in the

constitutional protection of speech" in which "[c]ore political speech occupies the highest, most protected position"); *Hill* v. *Colorado*, 530 U. S. 703, 787 (2000) (KENNEDY, J., dissenting) ("Laws punishing speech which protests the lawfulness or morality of the government's own policy are the essence of the tyrannical power the First Amendment guards against"); *Citizens United* v. *Federal Election Comm'n*, 558 U. S. 310, 349 (2010) ("If the First Amendment has any force, it prohibits Congress from fining or jailing citizens, or associations of citizens, for simply engaging in political speech").

Although in the Court's view the statute applies only where the PKK helps to coordinate a defendant's activities, *ante*, at 26, the simple fact of "coordination" alone cannot readily remove protection that the First Amendment would otherwise grant. That amendment, after all, also protects the freedom of association. See *NAACP* v. *Claiborne Hardware Co.*, 458 U. S. 886, 911 (1982) (The First Amendment's protections "of speech, assembly, association, and petition, 'though not identical, are inseparable'" (quoting *Thomas* v. *Collins*, 323 U. S. 516, 530 (1945))); *De Jonge* v. *Oregon*, 299 U. S. 353, 364 (1937) (describing the "right of peaceable assembly" as "a right cognate to those of free speech and free press and . . . equally fundamental"); see also *Roberts* v. *United States Jaycees*, 468 U. S. 609, 622 (1984). "Coordination" with a political group, like membership, involves association.

"Coordination" with a group that engages in unlawful activity also does not deprive the plaintiffs of the First Amendment's protection under any traditional "categorical" exception to its protection. The plaintiffs do not propose to solicit a crime. They will not engage in fraud or defamation or circulate obscenity. Cf. *United States* v. *Stevens*, 559 U. S. 460, 468–469 (2010) (describing "categories" of unprotected speech). And the First Amendment protects advocacy even of *unlawful* action so long as that advocacy is not

"directed to inciting or producing *imminent lawless action* and . . . *likely to incite or produce* such action." *Brandenburg* v. *Ohio*, 395 U. S. 444, 447 (1969) *(per curiam)* (emphasis added). Here the plaintiffs seek to advocate peaceful, *lawful* action to secure *political* ends; and they seek to teach others how to do the same. No one contends that the plaintiffs' speech to these organizations can be prohibited as incitement under *Brandenburg*.

Moreover, the Court has previously held that a person who associates with a group that uses unlawful means to achieve its ends does not thereby necessarily forfeit the First Amendment's protection for freedom of association. See *Scales* v. *United States*, 367 U. S. 203, 229 (1961) ("[Q]uasi-political parties or other groups that may embrace both legal and illegal aims differ from a technical conspiracy, which is defined by its criminal purpose"); see also *NAACP*, *supra*, at 908 ("The right to associate does not lose all constitutional protection merely because some members of the group may have participated in conduct or advocated doctrine that itself is not protected"). Rather, the Court has pointed out in respect to associating with a group advocating overthrow of the Government through force and violence: "If the persons assembling have committed crimes elsewhere . . . , they may be prosecuted for their . . . violation of valid laws. But it is a different matter when the State, instead of prosecuting them for such offenses, seizes upon mere participation in a peaceable assembly and a lawful public discussion as the basis for a criminal charge." *De Jonge*, *supra*, at 365 (striking down conviction for attending and assisting at Communist Party meeting because "[n]otwithstanding [the party's] objectives, the defendant still enjoyed his personal right of free speech and to take part in a peaceable assembly having a lawful purpose").

Not even the "serious and deadly problem" of international terrorism can require *automatic* forfeiture of First Amendment rights. §301(a)(1), 110 Stat. 1247, note following 18